factors strongly favor the parents, *ante*, at 496–497, I see no basis for denying this application.

JUSTICE KAGAN, with whom JUSTICE JACKSON joins, dissenting.

Today's decision shows, not for the first time, how our emergency docket can malfunction. A case raising novel legal questions and arousing strong views comes to this Court via an application about whether to stay a district court's injunction pending appeal. The ordinary appellate process has barely started; only a district court has ruled on the case's merits. The Court receives scant and, frankly, inadequate briefing about the legal issues in dispute. It does not hold oral argument or deliberate in conference, as regular procedures dictate. It considers the request on a short fuse—a matter of weeks. And then the Court grants relief by means of a terse, tonally dismissive ruling designed to conclusively resolve the dispute. The Court does all this even though the application of existing law to the case raises tricky questions, and so cries out for reflection and explanation. The Court is impatient: It already knows what it thinks, and insists on getting everything over quickly. See also, *e. g.*, *Department of State* v. *AIDS Vaccine Advocacy Coalition*, 606 U. S. ——, —— (2025) (KAGAN, J., dissenting from grant of stay application); *Trump* v. *Wilcox*, 605 U. S. ——, —— (2025) (KAGAN, J., dissenting from grant of stay application).

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Indeed, the precipitousness of the Court's decision today has yet a further—and wholly new—dimension: In granting emergency relief, the Court cannot even wait for an appellate court to conclude its own process for deciding the identical issue. As the Court notes, a Ninth Circuit panel last month stayed the District Court's injunction against the challenged policies, pending the State's appeal of that order. See *ante*, at 495–496. The plaintiffs responded by simultaneously filing two motions—one asking this Court to vacate the panel's

stay and the other asking the Ninth Circuit to do the same thing through en banc review. The Ninth Circuit is already acting on the motion filed there: The court promptly called for (and has now received) a response from the State, preparatory to exchanging memoranda and voting on reconsideration of the panel's decision. Regular order counsels that, in this situation, the Ninth Circuit should go first. The lower court, that is, should decide whether to vacate the stay; and only then should this Court decide whether further action is needed. Cf. Supreme Court Rule 23.3 (Stay applications "shall set out with particularity why the relief sought is not available from any other court"). But the Court's impatience cannot be contained for even that long. The Court jumps the line, pre-empting the Ninth Circuit's normal (and notably reflective) en banc process. Why wait for appellate procedures to play out when the Court already knows what it wants?

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And still, there is worse: The Court resolves the issues raised through shortcut procedures on the emergency docket even though it has had—for months now—the option of doing so the regular way, on our merits docket. Since November of last year, a petition for certiorari has been pending in a case that, in critical respects, is a carbon copy of this one. In *Foote* v. *Ludlow School Comm.*, 128 F. 4th 336 (CA1 2025) (*per curiam*), cert. pending, No. 25–77, as here, a public school adopted a policy, conforming to a state agency's guidance, about students who identify as transgender. There, as here, the policy requires school employees to use only a student's preferred name and pronouns, while barring employees from disclosing the student's at-school gender identity to parents. And there, as here, parents challenge that policy as a violation of their right to substantive due process. See *id.*, at 340–344.[1] Why not, then, just grant certiorari in

[1] The one difference between this case and *Foote* is that this case also involves a First Amendment free exercise claim, which would (if successful) give relief to parents with religious objections to the State's pol-

Foote, and decide it this coming fall? Or if there is some reason that *Foote* is not suitable, the Court could take one of the many cases lined up behind it. By recent count, almost 40 cases raising due process and/or free exercise objections to similar school policies are currently in the judicial system (with several recently decided by appellate courts), so this Court would not have to wait long. See Pet. for Cert. in *Foote*, O. T. 2025, No. 25–77, p. 32. By granting certiorari on one (or more) of those cases, the Court could ensure that the issues raised by such policies receive the careful, disciplined consideration they merit, rather than the inevitably truncated review the Court affords emergency applications.

Certainly, the Court cannot claim that thought and care are not needed. If nothing else, this Court owes it to a sovereign State to avoid throwing over its policies in a slapdash way, if the Court can provide normal procedures. And throwing over a State's policy is what the Court does today. To be sure, the Court sprinkles the word "likely" atop its assessment of which party's arguments will succeed. But no one—in particular, neither a state official nor a lower court—is apt to read the Court's *per curiam*, brusque though it is, as anything less than a conclusive merits judgment.

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In any event, there *is* something else: This case presents some thorny legal issues. The Court grants relief to parents on the same two substantive grounds that supported the District Court's injunction. First, the Court says, some parents can show that the State's policy "substantially inter-

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icy. But as addressed later, the Court's recognition of the substantive due process claim here makes the free exercise claim immaterial. See *infra*, at 505. That is because accepting the due process claim gives relief to *all* objecting parents, religious and non-religious alike. So granting certiorari in *Foote* would allow the Court to consider, on its regular merits docket, the only claim doing actual work here. And if it is nonetheless thought important to address the First Amendment issue as well, the Court could grant certiorari (as I next explain) on one of multiple other cases raising both issues that are likely to reach us in short order.

fere[s]" with their First Amendment right "to guide the religious development of their children." *Ante*, at 496. Here, the Court analogizes to *Mahmoud* v. *Taylor*, 606 U. S. 522 (2025), a decision issued last Term about school curriculum. The ink on that decision is barely dry, and courts have just begun to consider its meaning and reach. But even assume the Court is right on the free exercise score; still, that could not justify extending relief to *all* the parents here. After all, some of those parents object to the State's policy not for religious reasons, but simply because it prevents them from taking part in their children's most crucial life decisions. So the District Court also ruled on substantive due process grounds, finding a parental right to "direct the upbringing and medical care of their children." App. to Emergency Application 54a. And indeed, in doing so, the court made its free exercise ruling superfluous, because the due process ground protects every parent, whether or not religious. See *supra*, at 503–504, n. 1. This Court, to affirm the relief given, must follow the same course: It explains that the State's policy excludes parents from "participation in decisions regarding their children's mental health." *Ante*, at 497. But the very phrasing the Court uses betrays the delicateness of the operation: Even in recognizing that parental right, the Court cannot quite bring itself to name the legal doctrine—it is, again, substantive due process—that provides the right's only basis.

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Anyone remotely familiar with recent debates in constitutional law will understand why: Substantive due process has not been of late in the good graces of this Court—and especially of the Members of today's majority. The Due Process Clause, needless to say, does not expressly grant parental rights of any kind. The relevant text bars a State only from depriving a person of "liberty" "without due process of law." Members of the majority often have expressed skepticism—sometimes outright hostility—to understanding the "capacious" term "liberty" to enshrine specific rights. *Dobbs* v. *Jackson Women's Health Organization*, 597 U. S. 215, 239

(2022). Substantive due process, one has stated, is a "particularly dangerous" "legal fiction" because it "invites judges" to "roa[m] at large in the constitutional field guided only by their personal views." *McDonald* v. *Chicago*, 561 U. S. 742, 811 (2010) (THOMAS, J., concurring in part and concurring in judgment); *Obergefell* v. *Hodges*, 576 U. S. 644, 721 (2015) (THOMAS, J., dissenting).[2] Another has pointed to the "judicial misuse of the so-called 'substantive component' of due process to dictate policy on matters that belonged to the people to decide." *Sessions* v. *Dimaya*, 584 U. S. 148, 191 (2018) (GORSUCH, J., concurring in part and concurring in judgment). And yet a third, when defending the Court's elimination of a 50-year-old right grounded in substantive due process, explained that the "Constitution does not grant the nine unelected Members of this Court the unilateral authority to rewrite the Constitution." *Dobbs*, 597 U. S., at 340 (KAVANAUGH, J., concurring). There are many such statements to choose from in this Court's recent substantive due process caselaw. Especially given the Court's last venture into the field, today's decision cannot but induce a strong sense of whiplash. Compare *ante*, at 497 (recognizing a parent's right to make important decisions about her child's health), with *Dobbs*, 597 U. S., at 231 (repudiating a woman's right to make important decisions about her own health).[3]

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None of this is to say that the Court gets the merits here wrong. It may not—as to the plaintiffs' free exercise claim,

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[2] For that reason, JUSTICE THOMAS has called for overruling "all" of this Court's "substantive due process precedents." *Dobbs*, 597 U. S., at 332–333 (concurring opinion). That invitation presumably extends to the precedents supporting both the District Court's decision and today's *per curiam*. See *ante*, at 497 (citing *Meyer* v. *Nebraska*, 262 U. S. 390 (1923); *Pierce* v. *Society of Sisters*, 268 U. S. 510 (1925); and *Parham* v. *J. R.*, 442 U. S. 584 (1979)); App. to Emergency Application 38a–39a.

[3] Another contrast—this time, between this case and *United States* v. *Skrmetti*, 605 U. S. 495 (2025)—is also striking. In *Skrmetti*, several parents challenged Tennessee's ban on gender-affirming care for minors. The

or their substantive due process claim, or both. As to due process particularly—because, again, that claim alone does all the load-bearing work in this case, see *supra*, at 503–504, n. 1, 505—I have no doubt that parents have rights, even though unenumerated, concerning their children and the life choices they make. See *Pierce* v. *Society of Sisters*, 268 U. S. 510, 534–535 (1925); *Parham* v. *J. R.*, 442 U. S. 584, 602–603 (1979). On the other side of the ledger, of course, a State has critical interests in the care and education of children. But California's policy, in depriving all parents of information critical to their children's health and well-being, could have crossed the constitutional line. And that would entitle the parents, at the end of the day, to relief.

The Court, however, would be far better equipped to draw the appropriate line and to explain its legal basis—in short, to do law in the right way—if it had followed our ordinary processes. A mere decade ago, this Court would never have granted relief in this posture. (Indeed, I am confident that the plaintiffs would never have thought to ask, at this stage, for the Court's involvement.) Then, though apparently not now, we understood that our normal processes—full briefing, oral argument, conference, and opinion writing, along with the time they take—exist for a reason. They ensure that before the Court makes a decision, it has marshaled all the

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suit raised claims grounded in both equal protection and substantive due process. As to the latter, the parents in *Skrmetti*, similarly to the parents here, asserted a right "to make decisions concerning medical care for their minor children." Pet. for Cert., O. T. 2023, No. 23–466, p. 34; see *id.*, at 18 (invoking a "right of parents with respect to the care, custody, and control of their children, including in decisions about medical care"). And in support of that right, the *Skrmetti* parents relied on the same precedents the Court does today: *Parham*, 442 U. S. 584, and *Pierce*, 268 U. S. 510. See Pet. for Cert., No. 23–466, at 34–36; *ante*, at 497. But the Court, when deciding to grant certiorari in *Skrmetti*, limited its review to the equal protection issue: It would not even hear the parents out on their substantive due process claim.

relevant facts; considered all interested parties' and multiple lower courts' legal arguments; and deliberated internally, with full understanding of each other's perspectives, on all disputed issues. So too, those processes enable us to think through the best legal rationale for, and scope of, any decision, given both the views we have earlier expressed and the related issues that will soon come before us. And they allow us to explain ourselves well and carefully, both to the parties and to the public. Our processes are, in short, the hallmark of judicial probity, and alike its guarantor. There was no reason to abandon them here. I respectfully dissent.

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